

Calendar Line 1

Case Name: 24CV451704

Case No.: Teresa Bucciarelli et al. v. Alem Imru et al.

Plaintiff Teresa Bucciarelli's motion for trial preference. Notice is proper and the motion is opposed by defendants Apple Inc. and Alem Teshome Imru.

A civil litigant "who is over 70 years of age may petition the court" for trial preference if (1) the party has a substantial interest in the action as a whole, and (2) the health of the party is such that preference is necessary to prevent prejudicing the party's interest in the litigation. (Code Civ. Proc., § 36, subd. (a).) A court may also grant a motion for preference "supported by a showing that satisfies the court that the interests of justice will be served by granting this preference." (Code Civ. Proc., § 36, subd. (e).) If preference is granted, the "court shall set the matter for trial not more than 120 days from that date" and, subject to certain exceptions, "there shall be no continuance beyond 120 days from the granting of the motion." (*Id.*, subd. (f).)

Plaintiff meets the age and substantial interest elements. The motion lists a number of health conditions that might support trial preference. But defendants cite portions of plaintiff's deposition testimony that appear to be inconsistent with some of the medical conditions identified in the motion. The court needs more information to decide the motion. Plaintiff is ordered to file and serve a supplement to the motion with competent evidence (e.g., a declaration by plaintiff based on her personal knowledge and/or medical records) no later than August 28, 2026. Defendants may file and serve a response to that evidence no later than September 8, 2026. The supplement and response arguments shall be no more than three pages each. The court will then take the matter under submission.

The trial setting conference currently scheduled for August 25, 2026, is continued to September 22, 2026, at 11:00 a.m. in Department 10, to allow the court to review the supplemental information. The court will prepare the order.

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Calendar Line 2**Case Name:** American Express National Bank v. Olga Buchonina**Case No.:** 24CV453289

At issue is plaintiff American Express National Bank's motion for summary judgment against defendant Olga Buchonina in this credit card collections action. Notice is proper and no timely opposition was filed. Failure to oppose a motion may be deemed a consent to the granting of the motion. (Cal. Rules of Court, rule 8.54(c).) Failure to oppose a motion leads to the presumption that the non-moving party has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489.)

Summary judgment is appropriate when there is no triable issue of material fact as to one or more elements of a particular cause of action. (Code Civ. Proc., § 437c, subds. (f)(1), (o)(1).) The court identifies the causes of action framed by the pleadings. The court then determines whether the plaintiff as the moving party has carried its burden to show that there is no defense to any cause of action by proving each element of the causes of action. (Code Civ. Proc., § 437c, subd. (p)(1).) If the plaintiff makes that prima facie showing, the burden of production shifts to the defendant to show that a triable issue of one or more material facts exists as to the causes of action, or a defense thereto. (*Ibid.*) "The defendant or cross-defendant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto." (*Ibid.*)

The complaint alleges one causes of action against defendant—breach of written contract. That cause of action has the following elements: (1) existence of the contract; (2) plaintiff's performance or excuse for nonperformance; (3) defendant's breach; and (4) damages to plaintiff as a result of the breach. (*Aton Center, Inc. v. United Healthcare Ins. Co.* (2023) 93 Cal.App.5th 1214, 1230.)

Plaintiff's motion is supported by evidence showing that defendant obtained a credit card account from plaintiff that was subject to a cardmember agreement contract; defendant accepted the terms of that contract by using the credit card; plaintiff extended credit and performed all its obligations under the contract; defendant breached the contract by not making all required payments; and plaintiff suffered damages of \$8,075.38 (i.e., the balance due on the credit card). Plaintiff satisfied its initial burden as to both causes of action. Defendant did not oppose the motion. Plaintiff is entitled to summary judgment.

Plaintiff filed a memorandum of costs in February 2026, seeking \$797.61 in costs. Defendant forfeited any challenge to the amount of those costs by not timely filing a motion to tax costs. (Cal. Rules of Court, rule 3.1700(b)(1).)

Plaintiff's motion for summary judgment is GRANTED. Plaintiff is ordered to submit a proposed judgment indicating damages of \$8,075.38 in damages and \$797.61 in costs. The court will prepare the order.

Calendar Line 4

Case Name: George Sofalvi v. Ford Motor Company et al.

Case No.: 25CV473914

Plaintiff George Sofalvi (Plaintiff) purchased a 2023 Ford F150 (Subject Vehicle) in October 2022 from FFBH Motors LLC (Dealership). (Complaint at ¶ 10.) Plaintiff alleges the Subject Vehicle manifested defects covered by express written warranties. (*Id.* at ¶ 7.) Plaintiff delivered the Subject Vehicle for repair. (*Id.* at ¶ 15.) Plaintiff alleges Dealership failed to repair the Subject Vehicle to conform to the applicable express warranties. (*Id.* at ¶ 16.) Plaintiff sued Dealership and Ford Motor Company in August 2025 for violations of the Song-Beverly Consumer Warranty Act.

At issue is Dealership's petition to compel arbitration, based on the Retail Installment Sales Contract (RISC) signed by Plaintiff and Dealership when Plaintiff purchased the Subject Vehicle. Plaintiff filed three copies of a declaration instead of filing an opposition to the petition. Having reviewed the language of the RISC's arbitration provision and the circumstances of its execution, the court will grant the petition and stay the action.

LEGAL STANDARD

The Federal Arbitration Act (FAA) governs the arbitration provision based on the language of the provision and because the agreement affects interstate commerce. (Mtn. to Compel Arbitration at pp. 6:17-19.) The arbitration provision states "[a]ny arbitration under this Arbitration Provision shall be governed by the Federal Arbitration Act (9 U.S.C. §§ 1 et seq.) and not by any state law concerning arbitration." (Declaration of Trina Clayton ["Clayton Decl."], Ex. A at p. 5.) Under the FAA, the court's role is limited to determining "(1) whether a valid agreement to arbitrate exists, and if it does (2) whether the agreement encompasses the dispute at issue." (*Chiron Corp. v. Ortho Diagnostic Systems, Inc.* (9th Cir. 2000) 207 F.3d 1126, 1130.) To determine "whether a valid contract to arbitrate exists," courts apply "ordinary state law principles that govern contract formation." (*Davis v. Nordstrom, Inc.* (9th Cir. 2014) 755 F.3d 1089, 1093, citations omitted.)

Code of Civil Procedure section 1281.2 provides: "On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate such controversy, the court shall order the petitioner and respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that: [¶] (a) The right to compel arbitration has been waived by the petitioner; or [¶] (b) Grounds exist for rescission of the agreement."

In determining the threshold question of whether an arbitration agreement exists between the parties, the court employs a three-step burden shifting analysis. (*Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 755 (*Iyere*); *Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1060.) The party seeking to compel arbitration bears the initial burden of showing an agreement to arbitrate. If that burden is met, the burden shifts to the opposing party to show a factual dispute regarding the agreement's existence. If the opposing party does so, then the burden shifts back to the proponent of arbitration to show the existence of a valid agreement by a preponderance of the evidence. (*Iyere, supra*, 87 Cal.App.5th at p. 755.)

ANALYSIS

There is a Valid Agreement to Arbitrate

The arbitration provision in the RISC provides, in relevant part:

Any claim or dispute, whether in contract, tort, statute or otherwise (including the interpretation and scope of this Arbitration Provision, any allegation of waiver of rights under this Arbitration Provision, and the arbitrability of the claim or dispute), between you and us or our employees, agents, successors or assigns, which arises out of or relates to your credit application, purchase or condition of this Vehicle, this contract or any resulting transaction or relationship (including any such relationship with third parties who do not sign this contract) shall, at your or our election, be resolved by neutral, binding arbitration and not by a court action.

(Clayton Decl., Ex. A at p. 5.) Plaintiff does not dispute that he signed the RISC when he purchased the Subject Vehicle. Plaintiff signed and acknowledged the following notice of the arbitration provision: “**Agreement to Arbitrate.** By signing below, you agree that pursuant to the Arbitration Provision on page 5 of this contract, you or we may elect to resolve any dispute by neutral, binding arbitration and not by a court action. See the Arbitration Provision for additional information concerning the agreement to arbitrate.” (*Id.* Ex. A at p. 1.) The RISC further drew the arbitration provision to Plaintiffs’ attention through the following disclaimer: “YOU ACKNOWLEDGE THAT YOU HAVE READ BOTH SIDES OF THIS CONTRACT, INCLUDING THE ARBITRATION PROVISION ON PAGE 5, BEFORE SIGNING BELOW.” (*Id.*, Ex. A at p. 6.) Plaintiff’s signature on those sections of the RISC indicates express assent to the arbitration provision. (See *Mendoza v. Trans Valley Transport* (2022) 75 Cal.App.5th 748, 777 [“ ‘ “A party’s acceptance of an agreement to arbitrate may be express, as where a party signs the agreement.” ’ ”].)

“The moving party ‘can meet its initial burden by attaching to the [motion or] petition a copy of the arbitration agreement purporting to bear the [opposing party’s] signature. Alternatively, the moving party can meet its burden by setting forth the agreement’s provisions in the motion.’ ” (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165, internal citations and quotations omitted.) Here, Dealership attached a copy of the RISC signed by Plaintiff as Exhibit A to the Declaration of Trina Clayton. Dealership has also set forth the terms of the arbitration provision in the motion itself. (Mtn. to Compel Arbitration at pp. 3:10-4:3.)

To the extent Plaintiff argues he was unaware of the arbitration provision, he nevertheless acknowledges signing the RISC. (Declaration of George Sofalvi at ¶¶ 3, 4.) “An arbitration clause within a contract may be binding on a party even if the party never actually read the clause.” (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2012) 55 Cal.4th 223, 236.) The general rule is that “one who assents to a contract is bound by its provisions and cannot complain of unfamiliarity with the language.” (*Harris v. TAP Worldwide, LLC* (2016) 248 Cal.App.4th 373, 383.) Furthermore, the arbitration provision was contained in an outlined box with bold and capitalized font on page five of the RISC. There is a valid agreement to arbitrate.

The Scope of the Arbitration Agreement Covers Plaintiff's Claims

The scope of the arbitration provision covers Plaintiff's claims. The arbitration provision broadly applies to "[a]ny claim or dispute, whether in contract, tort, statute or otherwise..., between you and us..., which arises out of or relates to your credit application, purchase or condition of this Vehicle, this contract or any resulting transaction or relationship." (Clayton Decl., Ex. A at p. 5.) Plaintiff has sued Dealership for violations of the Song-Beverly Consumer Warranty Act; the complaint does not differentiate between defendants, meaning all causes of action are alleged against all defendants. These are statutory claims relating to the condition or purchase of the vehicle following repair by the Dealership. Plaintiff and Dealership are the parties to the transaction. That the alleged repair occurred after the parties signed the RISC is ultimately irrelevant because the arbitration provision states it applies to both "this contract" and "any resulting transaction or relationship" between the parties. Plaintiff's claims against Dealership are covered by the arbitration provision.

It appears that Plaintiff's unfiled opposition argues manufacturer warranties are not part of the sale, and the claims are not rooted in the purchase agreement. (Reply at p. 5:23-26 [citing Opposition at p. 6:17-9:5].) *Ford Motor Warranty Cases* (2025) 17 Cal.5th 1122, determined that manufacturer warranties are not part of a purchase agreement with a dealership. That opinion is distinguishable. *Ford Motor Warranty Cases* involved an attempt by an automobile manufacturer to compel arbitration based on a sales contract between a buyer and a dealership to which the manufacturer was not a party. The Supreme Court rejected the manufacturer's attempt to compel arbitration on a third party equitable estoppel theory. (*Id.* at p. 1126.) By contrast, here the entity petitioning to compel arbitration is a party to the contract containing the arbitration provision. The RISC is an agreement Plaintiff entered into with Dealership. As the dealership and a party to the agreement, Dealership may compel arbitration of Plaintiff's claims.

The petition to compel arbitration is granted. The court does not reach Dealership's arguments about lack of waiver and lack of unconscionability.

This Action is Stayed in its Entirety

Dealership requests a stay of the entire action. As Dealership notes, Plaintiff has sued two entities, Ford Motor Company and Dealership, for the same causes of action. Dealership argues, "[g]iven those allegations, clearly countless issues will overlap between the arbitration and this action, should the Court retain jurisdiction of the claims against Ford." (Reply at pp. 8:26-9:1.) Only Plaintiff's claims against Dealership are subject to arbitration. The claims against Ford Motor Company are not subject to arbitration under the RISC. But to avoid inconsistent rulings, a stay of these proceedings is proper under Code of Civil Procedure section 1281.4 and 9 U.S.C. § 3. The court STAYS this action in its entirety pending the outcome of arbitration.

CONCLUSION

The petition to compel arbitration is GRANTED. This action is STAYED in its entirety pending the outcome of arbitration.

The trial setting conference scheduled for August 25, 2026, is vacated. The court will hold a case status review regarding arbitration on August 5, 2027, at 11:00 a.m. in Department 10.

The court will prepare the order.

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Calendar Line 5

Case Name: Wells Fargo Bank, N.A. v. Andrew Tajvar

Case No.: 25CV474539

This is a limited civil action brought by plaintiff Wells Fargo Bank, N.A. (Wells Fargo) against defendant Andrew Tajvar (Tajvar). Wells Fargo seeks to recover unpaid credit card debt from Tajvar.

The original and still operative complaint is a form complaint filed in September 2025. It alleges two causes of action: (1) breach of written contract; and (2) breach of implied-in-fact contract (based on Tajvar’s use of a credit card). Attached to the complaint as exhibit A is a copy of the Visa credit card agreement upon which the first cause of action is based. (See Complaint, ¶ BC-1.) While the credit card agreement is not signed by either party, paragraph 1 states, in part: “This contract is for your Credit Card account (Account) and is between Wells Fargo Bank, N.A. and each Account holder. . . . By using or confirming your Account, you and any joint Account holder accept this Agreement’s terms.” Paragraph 2 states, in part: “When you use your Account or let someone else use it, you promise to pay the total amount of the Purchases, Cash Advances, and Balance Transfers. You also promise to pay all interest, fees, and other amounts that you may owe us.” Tajvar filed an answer to the complaint in October 2025.

At issue is Wells Fargo’s motion for summary judgment, opposed by Tajvar.

STANDARD FOR SUMMARY JUDGMENT

Summary judgment is appropriate when there is no triable issue of material fact as to one or more elements of a particular cause of action. (Code Civ. Proc., § 437c, subds. (f)(1), (o)(1).) The court identifies the causes of action framed by the pleadings. The court then determines whether the plaintiff as the moving party has carried its burden to show that there is no defense to any cause of action by proving each element of the causes of action. (Code Civ. Proc., § 437c, subd. (p)(1).) If the plaintiff makes that prima facie showing, the burden of production shifts to the defendant to show that a triable issue of one or more material facts exists as to the causes of action, or a defense thereto. (*Ibid.*) “The defendant or cross-defendant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto.” (*Ibid.*)

A reply “shall not include any new evidentiary matter, additional material facts, or separate statement submitted with the reply and not presented in the moving papers or opposing papers.” (Code Civ. Proc., § 437c, subd. (b)(4); *Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537-38; *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 252.)

DISCUSSION

Wells Fargo moves for summary judgment on the basis that “there is no triable issue of material fact, or issue of liability, and therefore the moving party is entitled to summary judgment.” (Notice of Motion, p. 2:2-4.) There is no request for summary adjudication in the alternative.

A breach of contract cause of action has the following elements: (1) existence of the contract; (2) plaintiff's performance or excuse for nonperformance; (3) defendant's breach; and (4) damages to plaintiff as a result of the breach. (*Aton Center, Inc. v. United Healthcare Ins. Co.* (2023) 93 Cal.App.5th 1214, 1230.)

Wells Fargo argues that Tajvar applied for and was sent a credit card along with a copy of the credit card agreement attached to the complaint. The terms of the agreement state that use of the credit card constitutes acceptance of the agreement. Wells Fargo further argues that: "In accordance with the Customer Agreement, Defendant used the account, and made payments, charges, and incurred a balance thereon. [¶] Plaintiff sent Defendant monthly statements of the Subject Account each and every billing period. . . . [¶] [T]here is no record of any unresolved disputes on the account. . . . [¶] Defendant's last payment on the Subject Account was on August 13, 2024. Thereafter, no further payments were made by the Defendant, and therefore, pursuant to the terms of the Customer Agreement, Defendant was in default. The balance due on Defendant's Subject Account is \$7,574.52." (Memorandum, p. 4:12-25, internal citations omitted.)

The motion is supported by two declarations. The first is from Brendan Hogan, a Loan Workout Specialist employed by Wells Fargo. He states that as part of his duties, he is responsible for monitoring credit card accounts, investigating and resolving customer disputes, and reviewing Wells Fargo business records for purposes of litigation. As part of his duties, he reviewed Tajvar's records with Wells Fargo. He states that these records show that Tajvar:

applied for, and was issued, a Wells Fargo credit card account.

Thereafter, Plaintiff sent Defendant a Wells Fargo Credit Card through the mail.

The most recent Customer Agreement associated with the Credit Card was made available to Defendant for review and objection.

Pursuant to Paragraph 1 of the Customer Agreement, Defendant accepted the terms of the Customer [A]greement by using the credit card.

Defendant's account was opened with Plaintiff on or about May 11, 2012.

Pursuant to the terms of the Customer Agreement, in exchange for making charges on the credit card, Defendant agreed to repay the principal amount plus any applicable interest and finance charges thereon.

Defendant charged goods and services to the account, or authorized others to charge goods and services to the account, with Plaintiff and thereby incurred a balance for said charges along with interest which was stated on the monthly billing statements . . .

Every month Wells Fargo Bank, N.A.'s computer system generates a monthly statement that is sent to the customer. As transactions are reported such as charges, overdraft transfers, cash advances and payments, they are recorded in Wells Fargo Bank, N.A.'s computer system which stores them, compiles the data, and keeps track of

the balance on a daily basis. This data is then used to generate the monthly statement that is sent to the customer.

(Hogan Decl., ¶¶ 9-16.)

Hogan declares that there “is no record of any unresolved disputes on this credit card account or any active lawsuits against Wells Fargo Bank, N.A. for any unresolved disputes on this credit card account of which Plaintiff is aware. [¶] The Defendant made payments of the principal and interest on the subject account up and through August 13, 2024. [¶] No further payments were made on this account after August 13, 2024, and a balance of \$7,574.52 remains due and owing from Defendant to Plaintiff on the subject account.” (Hogan Decl., ¶¶ 20-22.) There are two exhibits attached to the Hogan declaration. Exhibit 1 is a copy of Wells Fargo’s most recent Customer Agreement. Exhibit 2 consists of copies of all available statements of account for Tajvar’s credit card. (See Hogan Decl., ¶¶ 11 & 15.)

The second declaration is from Edgar Lopez, counsel for Wells Fargo, who authenticates two attached exhibits (again numbered 1 and 2). Exhibit 1 is a copy of requests for admission that Wells Fargo propounded on Tajvar and Exhibit 2 is a copy of Tajvar’s responses. Tajvar admitted four of the requests, numbers 1, 3, 4, and 7. He admitted in request no. 1 that he had been issued a Wells Fargo credit card. He admitted in request no. 3 that he, or those authorized by him, were the only ones to use the card. He admitted in request no. 4 that he received the monthly statements for the credit card. And he admitted in request no. 7 that the last payment he made was on August 13, 2024.

The evidence submitted by Wells Fargo is sufficient to meet its initial burden of establishing an absence of triable issues of material fact as to both the existence of a contract between itself and Tajvar (written or implied-by-conduct) and the existence and the amount of the debt owed by Tajvar to Wells Fargo.

When the burden shifts, Tajvar does not raise any triable issue of material fact. Tajvar argues there is a dispute as to the amount of the debt owed to Wells Fargo. But Tajvar’s dispute with a third party merchant over a purchase he made does not raise any triable issue as to amount of money he owes Wells Fargo. Tajvar does not contend that the transaction with the third party was an unauthorized or fraudulent use of the credit card. He does not deny making the purchase. Tajvar’s own evidence, exhibit C to Tajvar’s declaration, establishes that he was told more than a year ago in August 2025 that Visa had rejected his claim disputing the purchase and had decided in favor of the third party merchant. As a result, the purchase amount had been rebilled to the card account and was once again owed to Wells Fargo. Exhibit C also indicates that a letter explaining this was sent to Tajvar in March 2024.

Tajvar has also failed to establish that a violation of the Truth In Lending Act (TILA) provides him with an affirmative defense to Wells Fargo’s claims. The opposition’s contention that Wells Fargo’s motion fails to address this issue does not raise a triable issue because it is not part of a plaintiff’s initial burden on summary judgment to address affirmative defenses. (*Oldcastle, supra*, 170 Cal.App.4th at pp. 564-565.)

As the reply points out in responding to this argument, Tajvar has not established any violation of the TILA or its implementing regulation (Regulation Z). He has not submitted evidence of a compliant billing error notice. Under 18 U.S.C. section 1666, subdivision (a), to

begin the process of disputing a charge a written notice of a billing error must be sent to “the address disclosed under section 127(b)(10) [15 U.S.C. § 1637(b)(10)].” Similarly, under 12 Code of Federal Regulations part 1026.13(b)(1), a written notice of a billing error must be sent by a consumer to the creditor “at the address disclosed under § 1026.7(a)(9) or (b)(9), as applicable, no later than 60 days after the creditor transmitted the first periodic statement that reflects the alleged billing error.” The monthly statements sent to Tajvar by Wells Fargo identify the address for sending a written notice of a claimed billing error as: Wells Fargo Bank, N.A., P.O. Box 522, Des Moines, IA, 50306-0522.” (See statements in exhibit 2 to the Hogan Decl.) Tajvar admitted that he received the monthly statements sent by Wells Fargo, meaning he had notice of that address. (See exhibit 2 to the Lopez decl., response to RFA no. 4)

Because Wells Fargo met its initial burden and Tajvar has not raised any triable issue of material fact in opposition, the motion for summary judgment is granted.

CONCLUSION

Plaintiff Wells Fargo’s motion for summary judgment is granted.

The trial set for May 17, 2027, is vacated.

The court will prepare the order.

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Calendar Line 7**Case Name:** Zechariah Senior v. Zaher Lopez et al.**Case No.:** 25CV479981

This is an action brought by self-represented plaintiff Zechariah Senior (Plaintiff) against his former employer Walgreens Co. (Walgreens); Zaher Lopez (Lopez), an attorney who is representing Walgreens; and Tim Wentworth (Wentworth), in his capacity as the chief executive officer of Walgreens.

The original and still operative complaint was filed in November 2025. It appears to allege wage and hour violations from when Plaintiff was a minor. It does not state any clear causes of action. Nor does it comply with California Rules of Court, rule 2.112, which requires each cause of action in a pleading to be separately alleged and state its number (e.g., “first cause of action”), its nature (e.g., “for fraud”), and the party or parties to whom it is directed (e.g., “against defendant Smith”). There are no exhibits attached to the complaint.

Plaintiff filed a single proof of service of summons (POSS) on December 19, 2025. This document claims that “Tim Wentworth, Zaher Lopez, CT Cotporstiom” were served with copies of the summons through an unidentified means of substituted service on an unidentified date, and that copies were then mailed to them on December 11, 2025. (See POSS, at ¶ 5(b).) The POSS does not indicate that copies of a notice and acknowledgement of receipt and postage paid return envelopes were sent to the persons or entities served. (*Id.* at ¶ 5(c).) Service was not made by a registered process server. (*Id.* at ¶ 7.) The POSS is signed by Fortino Diaz.

At issue is a motion to quash service of summons by specially appearing defendants Lopez and Walgreens (hereafter, Defendants), filed in February 2026. Plaintiff has filed four separate oppositions to this motion, in March 2026, April 2026, May 2026 and July 2026. Plaintiff is admonished that typically only one opposition to a motion may be filed. The court will not consider unauthorized supplemental oppositions in the future. Self-represented litigants are entitled to the same, but no greater, consideration than other litigants and attorneys. (*County of Orange v. Smith* (2005) 132 Cal.App.4th 1434, 1444; *Kobayashi v. Superior Court* (2009) 175 Cal.App.4th 536, 543; *Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984-985.)

REQUEST FOR JUDICIAL NOTICE

“Judicial notice may not be taken of any matter unless authorized or required by law.” (Evid. Code, § 450.) A precondition to judicial notice in either its permissive or mandatory form is that the matter to be noticed be relevant to the material issue before the court. (*Silverado Modjeska Recreation and Park Dist. v. County of Orange* (2011) 197 Cal.App.4th 282, 307.) Evidence Code section 453, subdivision (b), requires a party seeking notice to “[furnish] the court with sufficient information to enable it to take judicial notice of the matter.”

In support of the motion, Defendants have submitted a request for judicial notice of the contents of a Statement of Information filed with the Secretary of State, attached to the request as exhibit A, “pursuant to Evidence Code sections 452 and 453.” (Request at p. 2:2.) Defendants argue the document is noticeable as an official act. The request is denied. (*Hughes*

v. Blue Cross of N. Cal. (1989) 215 Cal.App.3d 832, 856, fn. 2, citing Evid. Code, § 452, subd. (c) [Statement of Information, although on file with a government agency, not subject to judicial notice as an official act under subdivision (c) because it was prepared by private parties, not the Secretary of State]; *People v. Thacker* (1985) 175 Cal.App.3d 594, 598-599 [copies of articles of incorporation, statement by domestic corporation, and notice of issuance of shares were materials prepared by private person, merely on file with state agencies, and not official acts].)

LEGAL STANDARD FOR MOTION TO QUASH SERVICE

Code of Civil Procedure section 418.10, subdivision (a)(1), authorizes a defendant to file a motion to quash service of summons “on the ground of lack of jurisdiction of the court over him or her.” (Code Civ. Proc. § 418.10, subd. (a)(1).) “[A] motion to quash under section 418.10, subdivision (a)(1), is a limited procedural tool to contest personal jurisdiction over the defendant where the statutory requirements for service of process are not fulfilled.” (*Stancil v. Superior Court* (2021) 11 Cal.5th 381, 390.) New evidence is not permitted with reply papers unless it is “strictly responsive” to arguments made for the first time in the opposition. (*Golden Door Properties, LLC v. Superior Court* (2020) 53 Cal.App.5th 733, 774.)

“[I]n California, ‘ . . . the original service of process, which confers jurisdiction, must conform to statutory requirements or all that follows is void.’ ” (*Ruttenberg v. Ruttenberg* (1997) 53 Cal.App.4th 801, 809.) “Until statutory requirements are satisfied, the court lacks jurisdiction over a defendant.” (*Id.* at p. 808.) “When a defendant challenges the court’s personal jurisdiction on the ground of improper service of summons the burden is on the plaintiff to prove . . . the facts requisite to an effective service.” (*Summers v. McClanahan* (2006) 140 Cal.App.4th 403, 413, internal quotations omitted; see also *Lebel v. Mai* (2012) 210 Cal.App.4th 1154, 1160.)

Service can be effectuated via mail if the proper procedure is followed and the person to be served signs an acknowledgement of receipt of summons. Code of Civil Procedure section 415.30, subdivision (a) states: “A summons may be served by mail as provided in this section. A copy of the summons and of the complaint shall be mailed (by first-class mail or airmail, postage prepaid) to the person to be served, together with two copies of the notice and acknowledgment provided for in subdivision (b) and a return envelope, postage prepaid, addressed to the sender.” (See also Code Civ. Proc., §§ 416.10, subds. (a), (b) [stating that a summons and complaint may be served on a corporation by delivering a copy of the summons and the complaint to the person designated as agent for service of process, the president, chief executive officer, or other head of the corporation, a vice president, a secretary or assistant secretary, a treasurer or assistant treasurer, a controller or chief financial officer, a general manager, or a person authorized by the corporation to receive service of process]; 417.10, subd. (a) [the proof of service must recite the name of the person to whom a copy of the summons and of the complaint were delivered, and, if appropriate, his or her title or the capacity in which he or she is served].)

DISCUSSION

Defendants move to quash service on the basis that “Plaintiff failed to serve Summons on Defendants and therefore this Court currently lacks personal jurisdiction over the Defendants.” (Notice of Motion and Motion at p. 2:7-8.) Defendants argue that Plaintiff failed

to mail a copy of the summons and a return envelope with the complaint, and did not otherwise meet the requirements for service by mail.

The motion is supported by two declarations. The first is from Donna Brent. She states that she is a Legal Coordinator for Walgreens. As part of her duties, mail directed to Walgreens and current and former employees pertaining to civil litigation, including mail from registered agents for service, is sent to her. Attached to her declaration as exhibits A and B are copies of the envelopes and the complete contents of the envelopes sent by Plaintiff to Tim Wentworth (as CEO of Walgreens) and CT Corporation System. Those documents do not include a copy of the summons, a notice and acknowledgement of summons form, or return envelopes. (See Brent Decl., ¶¶ 1-5.)

The second declaration is from specially appearing defendant Lopez. He states that he has “not received any certified mail from Plaintiff that includes a Complaint or the Summons for this action.” (Lopez Decl., ¶ 2.) That evidence is sufficient to show that proper service has not been made on the moving Defendants.

Plaintiff does not meet his burden to show facts demonstrating effective service. He has not shown that service was ever completed. He has not shown that Defendants, or a person authorized to accept service on their behalf, executed and returned to Plaintiff a written acknowledgement of receipt of summons. (See Code Civ. Proc., §§ 415.30, subd. (c) [“Service of a summons pursuant to this section is deemed complete on the date a written acknowledgement of receipt of summons is executed, if such acknowledgement thereafter is returned to the sender.”], 417.10, subd. (a) [“If service is made by mail pursuant to Section 415.30, proof of service shall include the acknowledgment of receipt of summons in the form provided by that section or other written acknowledgment of receipt of summons satisfactory to the court.”].) There is no evidence that the moving Defendants executed and returned a written acknowledgment of receipt of summons that conforms to the required form set forth in Code of Civil Procedure section 415.30, subdivision (b). The POSS filed with the court does not even indicate if copies of a notice and acknowledgement of receipt and postage paid return envelopes were mailed to Defendants. The only documents attached to the POSS are copies of certified mail receipts and printouts of USPS tracking information. That does not establish proper service. (*Tandy Corp. vs. Superior Court* (1981) 117 Cal.App.3d 911, 913 [“[A] postal service return receipt does not suffice as a substitute for an executed acknowledgement of receipt of summons.”])

Plaintiff’s oppositions do not establish valid service on either of the moving Defendants. They make arguments irrelevant to the motion to quash.

CONCLUSION

Defendants’ request for judicial notice is denied.

Defendants’ motion to quash service of summons is granted.

An order to show cause regarding plaintiff’s failure to serve the defendants will be heard on February 18, 2027, at 10:00 a.m. in Department 10. The parties are encouraged to meet and confer about service.

The court will prepare the order.

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Calendar Line 8

Case Name: Timothy Young v. BMW of North America, LLC

Case No.: 23CV423619

Plaintiff Timothy Young filed this Song-Beverly Consumer Warranty Act action against defendant BMW of North America, LLC, based on alleged defects in a used 2018 BMW 530E (subject vehicle). The court (Judge Chung) previously granted defendant's motion for judgment on the pleadings with leave to amend.

At issue is defendant's demurrer to the first amended complaint (FAC). The demurrer was set for hearing on August 11, 2026. The court granted plaintiff's ex parte application to continue the hearing to allow defendant an opportunity to review plaintiff's untimely opposition. The court also ordered plaintiff's counsel to be prepared to show cause why he should not be sanctioned for his repeated failure to comply with filing deadlines; this is the second time plaintiff has failed to timely oppose a motion in this case. Defendant did not file a reply brief. Trial is set for September 14, 2026.

The FAC alleges plaintiff purchased the subject vehicle in November 2021 as a BMW Certified used car "which was manufactured, distributed, or sold by Defendants BMW of North America, LLC," and Doe defendants. (FAC, ¶ 4.) The FAC alleges plaintiff received an express one-year warranty, the " 'BMW Certified Protection Plan [that] provides specific coverage against defects in materials and workmanship.' " (FAC, ¶ 7.) The FAC alleges, "Pursuant to Civil Code section 1795.5, the obligation BMW has here, as the distributor or retail seller of used consumer goods in a sale in which an express warranty is given, is the same as that imposed on manufacturers under the Song-Beverly Consumer Warranty Act." (*Ibid.*)

The FAC alleges 11 causes of action: (1) breach of the implied warranty of merchantability; (2) breach of an express warranty; (3) failure to promptly repurchase product; (4) failure to maintain sufficient service and repair facilities; (5) failure to make service literature and parts available; (6) advertising defective merchandise without disclosing defects (Bus. & Prof. Code, §§ 17531, 17535); (7) conversion; (8) negligence; (9) violation of Civil Code section 1796.5; (10) breach of express warrant (Magnuson-Moss Warranty Act; 15 U.S.C. § 2301 et seq.); and violation of the Consumer Legal Remedies Act (Civ. Code, § 1750).

DEMURRER LEGAL STANDARD

In ruling on a demurrer, the court accepts as true all properly pleaded material factual allegations but does not accept as true contentions, deductions or conclusions of fact or law. (*Valero v. Spread Your Wings, LLC* (2023) 88 Cal.App.5th 243, 253.) Code of Civil Procedure section 430.60 states that "[a] demurrer shall distinctly specify the grounds upon which any of the objections to the complaint, cross-complaint, or answer are taken. Unless it does so, it may be disregarded." The California Rules of Court also require that the demurrer itself (distinct from a supporting memorandum) specify the target of any objection and the grounds. (See Cal. Rules of Court, rules 3.1103(c), 3.1112(a), 3.1320(a) ["Each ground of demurrer must be in a separate paragraph and must state whether it applies to the entire complaint, cross-complaint, or answer, or to specified causes of action or defenses."].)

The court cannot consider extrinsic evidence when ruling on a demurrer. That includes declarations. The court has considered the declaration from defense counsel only to the extent it discusses the meet and confer efforts required by statute. The court has not considered the attached exhibits. Finally, “points raised in the reply brief for the first time will not be considered, unless good reason is shown for failure to present them before.” (*Proctor v. Vishay Intertechnology, Inc.* (2013) 213 Cal.App.4th 1258, 1273.)

DISCUSSION

First through Fifth Causes of Action – Civ. Code, § 1795.5

Defendant argues the first through fifth causes of action fail to state sufficient facts to constitute a cause of action under the reasoning of *Rodriguez v. FCA US LLC* (2024) 17 Cal.5th 189 (*Rodriguez*) because plaintiff purchased the subject vehicle as a used car. (Demurrer MPA, pp. 2-4.)

Civil Code section 1795.5 governs the obligations of a distributor or retail seller of used consumer goods in which an express warrant is given. (Unspecified statutory references are to the Civil Code.) The obligation is “same as that imposed on manufacturers under this chapter except”: (a) “It shall be the obligation of the distributor or retail seller making express warranties with respect to used consumer goods (and not the original manufacturer, distributor, or retail seller making express warranties with respect to such goods when new) to maintain sufficient service and repair facilities within this state to carry out the terms of such express warranties.”; (b) “The provisions of Section 1793.5 [failure to provide service and repair facilities within the state] shall not apply to the sale of used consumer goods sold in this state.”; (c) “The duration of the implied warranty of merchantability and where present the implied warranty of fitness with respect to used consumer goods sold in this state, where the sale is accompanied by an express warranty, shall be coextensive in duration with an express warranty which accompanies the consumer goods, provided the duration of the express warranty is reasonable, but in no event shall such implied warranties have a duration of less than 30 days nor more than three months following the sale of used consumer goods to a retail buyer.”; (d) “The obligation of the distributor or retail seller who makes express warranties with respect to used goods that are sold in this state, shall extend to the sale of all such used goods, regardless of when such goods may have been manufactured.” (§ 1795.5.)

Kiluk v. Mercedes-Benz USA, LLC (2019) 43 Cal.App.5th 334 (*Kiluk*) involved application of section 1795.5 to the “sale of a certified preowned Mercedes Benz that still had a portion of the new vehicle warranty remaining, and which was accompanied by an additional used vehicle warranty issued by the manufacturer.” (*Id.* at p. 336.) The manufacturer argued section 1795.5 did not apply because the section exempts manufacturers. The *Kiluk* court reasoned that where a manufacturer sells directly to the public, it takes on the role of a retailer. The court noted that “Mercedes Benz partnered with a dealership to sell used vehicles directly to the public by offering an express warranty as part of the sales package, which is a crucial incentive for buyers like plaintiff.” In finding that section 1795.5 applied to the manufacturer, the court reasoned that by “partnering with the dealership, Mercedes Benz stepped into the role of a retailer and was subject to the obligations of a retailer under section 1795.5.” The court affirmed a jury verdict regarding breach of an express warranty under section 1793.2.

Here, the FAC cites section 1795.5 and alleges that defendant provided an express warranty for the used car, referred to as the BMW Certified Protection Plan. Under the reasoning of *Kiluk*, which defendant's demurrer does not cite or discuss, plaintiff's action is not barred.

Defendant relies on *Rodriguez*. The *Rodriguez* court determined that a "motor vehicle purchased with an unexpired manufacturer's new car warranty does not qualify as a motor vehicle sold with a manufacturer's new car warranty under [Civil Code] section 1793.22, subdivision (e)(2)'s definition of new motor vehicle unless the new car warranty was issued with the sale." (*Rodriguez, supra*, 17 Cal.5th at p. 196.) That court did not address the situation presented here, a used car sold with an express warranty separate from the new car warranty. The demurrer to the first five causes of action based on *Rodriguez* is overruled.

First Cause of Action – Breach of Implied Warranty of Merchantability

Defendant argues the first cause of action fails to state sufficient facts to constitute a cause of action because there is no implied warranty for used cars. (MPA, p. 5.) But section 1795.5, subdivision (c), discusses the duration of the implied warranty of merchantability regarding used consumer goods. Plaintiff can proceed under that section. The demurrer to the first cause of action is overruled.

Fourth Cause of Action – Failure to Maintain Sufficient Service and Repair Facilities

Defendant argues the fourth cause of action fails to state sufficient facts to constitute a cause of action because it is not pleaded with particularity. (MPA, p. 6.)

Statutory causes of action must be pleaded with particularity. (*Covenant Care, Inc. v. Superior Court* (2004) 32 Cal.4th 771, 790.) The fourth cause of action is not pleaded with particularity. It merely alleges that defendant failed to maintain sufficient service centers without providing the particularity required for statutory causes of action. It is also inconsistent with earlier allegations of the FAC regarding plaintiff's attempts to have the subject vehicle repaired. Those more specific allegations discuss plaintiff taking the subject vehicle to authorized repair facilities. None describe any difficulty finding an authorized repair facility. (FAC, ¶¶ 11-14.) The demurrer to the fourth cause of action is sustained. Further leave to amend is denied based on a failure to demonstrate a reasonable possibility of amendment.

Fifth Cause of Action – Failure to Make Service Literature and Parts Available

Defendant argues the fifth cause of action fails to state sufficient facts to constitute a cause of action because it is not pleaded with particularity. (MPA, p. 7.)

The fifth cause of action suffers from the same defect as the fourth cause of action. It is not pleaded with particularity, and the more specific allegations in the FAC do not describe any failure to make service literature and parts available. The demurrer to the fifth cause of action is sustained. Further leave to amend is denied based on a failure to demonstrate a reasonable possibility of amendment.

Sixth Cause of Action – False Advertising

Defendant argues the sixth cause of action fails to state sufficient facts to constitute a cause of action because the challenged statement is not an advertisement; plaintiff failed to properly allege injury; and injunctive relief is not available as a remedy under the Song-Beverly Consumer Warranty Act.

The sixth cause of action alleges a violation of California's false advertising law. (Bus. Prof. Code, § 17500 et seq.) The sixth cause of action focuses on Business and Professions Code section 17531, which makes it unlawful for anyone to advertise the sale of defective merchandise without disclosing that the merchandise is defective. (Bus. & Prof. Code, § 17531 ["It is unlawful for any person, firm, or corporation . . . to advertise, call attention to or give publicity to the sale of any merchandise . . . unless there is conspicuously displayed directly in connection with the name and description of that merchandise and each specified article, unit, or part thereof, a direct and unequivocal statement, phrase, or word which will clearly indicate that the merchandise or each article, unit, or part thereof so advertised is secondhand, used, defective, or consists of 'seconds' or is blemished merchandise, or has been rejected by the manufacturer thereof, as the case may be."].)

The court previously granted judgment on the pleadings as to the false advertising cause of action in the original complaint because it found the complaint's boilerplate allegations did little more than repeat the language of the code section. The FAC's sixth cause of action remains deficient. The sixth cause of action alleges that plaintiff was provided with (1) a BMW Certified Unlimited Mileage Statement of Certification and Coverage, and (2) a BMW Certified Vehicle Inspection Checklist. The fatal deficiency in the sixth cause of action is that the documents plaintiff received related to the subject vehicle unequivocally indicated that the vehicle was used, thereby satisfy Business and Professions Code section 17531. The demurrer to the sixth cause of action is sustained. Further leave to amend is denied based on a failure to demonstrate a reasonable possibility of amendment.

Tenth and 11th Causes of Action – Improper New Causes of Action

“ ‘Following an order sustaining a demurrer or a motion for judgment on the pleadings with leave to amend, the plaintiff may amend his or her complaint only as authorized by the court's order.’ ” (*Zakk v. Diesel* (2019) 33 Cal.App.5th 431, 456.) “ ‘The plaintiff may not amend the complaint to add a new cause of action without having obtained permission to do so, unless the new cause of action is within the scope of the order granting leave to amend.’ ” (*Ibid.*)

The original complaint did not allege violations of the Magnuson-Moss Warranty Act or the Consumer Legal Remedies Act, which are the bases for the FAC's 10th and 11th causes of action, respectively. The court's order granting judgment on the pleadings did not grant leave to add new causes of action, and plaintiff did not obtain permission to do so. The demurrer to the 10th and 11th causes of action is sustained without leave to amend.

CONCLUSION

The demurrer to the first, second, and third causes of action is OVERRULED.

The demurrer to the fourth, fifth, sixth, 10th, and 11th causes of action is SUSTAINED WITHOUT LEAVE TO AMEND.

Trial remains as set for September 14, 2026.

The court will prepare the order.

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